COMMERCIAL AGREEMENT - RECORD 002

Helioscope Robotics, Inc. - diligence file reference COMMERCIAL_CONTRACTS-002

1. Recitals and defined terms

This Component Supply Agreement is made between Helioscope Robotics, Inc. as Provider and Blue Mesa Components Corporation as Supplier, a precision machining business organised in Arizona, contracting through Blue Mesa Components Corporation. Blue Mesa and the Provider have agreed that terms defined in the recitals and in Schedule 3 carry the same meaning throughout, and that a defined term used in an Order has the meaning given here unless the Order expressly varies it.

Where Article 8 (Acceptance) applies, telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. By way of qualification, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. In precision machining the burden of this sits with operations, and Blue Mesa discharges it across 2 sites under the Component Supply Agreement. Because Blue Mesa operates in precision machining, the practical burden of this clause falls on its Arizona operation, and Article 20 (Notices) governs how it is measured.

The Provider has undertaken to Blue Mesa that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. Textually, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. The Component Supply Agreement reaches each of Blue Mesa's 2 sites separately, which is how a precision machining operator in Arizona administers it. Because Blue Mesa operates in precision machining, the practical burden of this clause falls on its Arizona operation, and Article 8 (Acceptance) governs how it is measured.

The Provider has undertaken to Blue Mesa that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. As between them, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Because Blue Mesa is a Arizona precision machining business with 2 sites, the Component Supply Agreement devolves this to the site manager. The Blue Mesa file records the position as at the last amendment, and Article 3 (Scope of Supply) is the reference a reviewer should cite when raising it.

Read with Exhibit B, personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. Operationally, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. For Blue Mesa, a precision machining operator running 2 sites out of Arizona, the point matters because the Component Supply Agreement is administered site by site. The obligation as it applies to Blue Mesa was tightened at signature, and Article 19 (Confidentiality) carries the negotiated wording rather than the standard wording.

Blue Mesa supply agreement - Schedule 2 - Sites and Operating Patterns

Blue Mesa site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
BLU-S001	Larkspur facility	32	2024-03-15	two shifts	Provider furnished	accepted with punch list
BLU-S002	Evergreen facility	30	2025-05-07	continuous	shared	accepted
BLU-S003	Dunbar facility	10	2025-08-25	two shifts	Provider furnished	accepted with punch list
BLU-S004	Dayton facility	9	2025-10-26	two shifts	Provider furnished	accepted
BLU-S005	Dayton facility	18	2026-03-25	single shift	shared	not commenced
BLU-S006	Granite facility	35	2025-03-11	two shifts	Provider furnished	not commenced
BLU-S007	Dunbar facility	20	2026-07-05	two shifts	Provider furnished	accepted
BLU-S008	Juniper facility	24	2026-06-04	single shift	Customer furnished	accepted with punch list
BLU-S009	Larkspur facility	34	2026-06-25	two shifts	shared	not commenced
BLU-S010	Harborline facility	8	2026-02-04	two shifts	shared	not commenced

Blue Mesa site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
BLU-S011	Larkspur facility	26	2025-12-14	single shift	shared	not commenced
BLU-S012	Juniper facility	36	2026-06-05	single shift	Customer furnished	not commenced
BLU-S013	Keystone facility	13	2025-10-03	continuous	shared	accepted
BLU-S014	Crestline facility	31	2025-07-27	two shifts	Provider furnished	accepted with punch list
BLU-S015	Juniper facility	20	2024-12-28	single shift	shared	accepted with punch list
BLU-S016	Dayton facility	9	2024-05-19	single shift	Provider furnished	pending acceptance
BLU-S017	Dunbar facility	16	2026-12-10	two shifts	Customer furnished	accepted
BLU-S018	Crestline facility	12	2024-08-12	continuous	Provider furnished	accepted with punch list
BLU-S019	Fathom facility	25	2024-04-20	continuous	Customer furnished	not commenced
BLU-S020	Larkspur facility	6	2026-12-11	two shifts	Customer furnished	accepted
BLU-S021	Meridian facility	19	2024-10-01	continuous	shared	pending acceptance
BLU-S022	Meridian facility	20	2025-05-19	single shift	Customer furnished	pending acceptance
BLU-S023	Dayton facility	13	2024-04-14	continuous	Customer furnished	not commenced
BLU-S024	Evergreen facility	17	2026-06-02	continuous	Provider furnished	accepted with punch list
BLU-S025	Granite facility	8	2025-11-10	two shifts	Customer furnished	accepted
BLU-S026	Juniper facility	12	2026-02-18	two shifts	Provider furnished	pending acceptance
BLU-S027	Crestline facility	14	2024-08-17	two shifts	shared	accepted with punch list
BLU-S028	Fathom facility	34	2026-09-16	two shifts	shared	pending acceptance
BLU-S029	Mesa facility	4	2024-12-10	single shift	shared	accepted with punch list
BLU-S030	Meridian facility	28	2024-08-23	single shift	Provider furnished	accepted
BLU-S031	Larkspur facility	33	2025-11-28	single shift	Provider furnished	not commenced
BLU-S032	Harborline facility	11	2025-04-18	single shift	Customer furnished	accepted
BLU-S033	Meridian facility	25	2025-10-21	two shifts	Provider furnished	accepted with punch list
BLU-S034	Juniper facility	5	2025-07-17	single shift	Customer furnished	not commenced
BLU-S035	Harborline facility	21	2024-08-05	two shifts	Provider furnished	not commenced
BLU-S036	Harborline facility	35	2026-02-21	continuous	shared	accepted with punch list
BLU-S037	Crestline facility	6	2024-12-28	two shifts	Provider furnished	accepted with punch list
BLU-S038	Larkspur facility	29	2025-10-23	continuous	shared	accepted with punch list
BLU-S039	Meridian facility	33	2025-02-01	continuous	shared	accepted
BLU-S040	Larkspur facility	28	2024-10-13	two shifts	Customer furnished	accepted
BLU-S041	Crestline facility	21	2025-11-18	two shifts	Customer furnished	not commenced
BLU-S042	Granite facility	22	2024-09-05	continuous	Provider furnished	accepted with punch list
BLU-S043	Crestline facility	12	2026-01-01	two shifts	Customer furnished	pending acceptance
BLU-S044	Harborline facility	33	2024-02-08	two shifts	Provider furnished	accepted
BLU-S045	Mesa facility	14	2026-05-10	continuous	Customer furnished	pending acceptance
BLU-S046	Dayton facility	23	2024-10-10	single shift	Customer furnished	accepted

Blue Mesa site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
BLU-S047	Crestline facility	26	2025-06-21	continuous	Provider furnished	accepted with punch list
BLU-S048	Fathom facility	14	2025-06-01	single shift	shared	not commenced
BLU-S049	Harborline facility	35	2024-12-01	single shift	shared	not commenced
BLU-S050	Crestline facility	35	2024-10-20	continuous	shared	pending acceptance
BLU-S051	Dunbar facility	29	2024-12-11	continuous	shared	accepted with punch list
BLU-S052	Meridian facility	34	2025-02-10	single shift	Customer furnished	accepted
BLU-S053	Mesa facility	27	2024-08-01	continuous	shared	accepted with punch list
BLU-S054	Crestline facility	8	2025-03-13	two shifts	Customer furnished	accepted with punch list
BLU-S055	Juniper facility	15	2025-12-16	single shift	Provider furnished	not commenced
BLU-S056	Evergreen facility	21	2024-07-11	two shifts	Customer furnished	pending acceptance
BLU-S057	Dayton facility	27	2024-03-01	continuous	shared	pending acceptance
BLU-S058	Meridian facility	36	2026-03-27	single shift	Customer furnished	not commenced
BLU-S059	Larkspur facility	7	2024-12-17	two shifts	Customer furnished	accepted
BLU-S060	Mesa facility	5	2024-12-23	two shifts	Provider furnished	accepted with punch list
BLU-S061	Keystone facility	32	2026-03-23	continuous	Provider furnished	accepted with punch list
BLU-S062	Larkspur facility	14	2024-03-21	continuous	Provider furnished	accepted with punch list
BLU-S063	Harborline facility	7	2024-12-23	continuous	Customer furnished	accepted with punch list
BLU-S064	Dayton facility	39	2024-06-28	continuous	shared	accepted
BLU-S065	Crestline facility	5	2025-02-27	two shifts	Provider furnished	pending acceptance
BLU-S066	Larkspur facility	26	2024-12-26	continuous	shared	pending acceptance
BLU-S067	Evergreen facility	32	2026-12-17	continuous	Provider furnished	not commenced
BLU-S068	Dunbar facility	12	2025-05-09	two shifts	Customer furnished	accepted
BLU-S069	Larkspur facility	14	2025-04-09	single shift	Customer furnished	accepted
BLU-S070	Granite facility	37	2025-12-24	two shifts	Provider furnished	pending acceptance
BLU-S071	Larkspur facility	20	2026-04-16	two shifts	Provider furnished	accepted
BLU-S072	Keystone facility	38	2024-05-04	continuous	shared	accepted with punch list
BLU-S073	Fathom facility	16	2024-05-23	two shifts	Customer furnished	pending acceptance
BLU-S074	Juniper facility	16	2026-12-14	continuous	Provider furnished	pending acceptance
BLU-S075	Mesa facility	21	2026-06-22	two shifts	Provider furnished	accepted
BLU-S076	Fathom facility	10	2024-01-16	continuous	shared	accepted
BLU-S077	Dayton facility	32	2024-07-22	continuous	Provider furnished	pending acceptance
BLU-S078	Juniper facility	33	2026-07-04	two shifts	Provider furnished	pending acceptance
BLU-S079	Harborline facility	30	2024-11-14	continuous	shared	not commenced
BLU-S080	Crestline facility	10	2025-11-26	single shift	Customer furnished	pending acceptance
BLU-S081	Juniper facility	9	2024-12-12	two shifts	shared	not commenced
BLU-S082	Meridian facility	36	2025-12-25	two shifts	Customer furnished	pending acceptance
BLU-S083	Juniper facility	24	2024-03-17	two shifts	Provider	not commenced

Blue Mesa site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
					furnished	
BLU-S084	Mesa facility	39	2026-03-26	continuous	Customer furnished	accepted

2. Scope of supply and orders

Under Article 11 (Data and Telemetry) of the Component Supply Agreement, personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. Per the amendment history, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. This bites at Blue Mesa's 2 sites, since a precision machining operator administers the Component Supply Agreement where the units work. Because Blue Mesa operates in precision machining, the practical burden of this clause falls on its Arizona operation, and Article 4 (Orders and Quantities) governs how it is measured.

Except as Article 18 (Assignment) permits, telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. Negotiated position: the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Site count matters here: Blue Mesa has 2 sites, and the Component Supply Agreement treats each as a separate delivery point. The obligation as it applies to Blue Mesa was tightened at signature, and Article 12 (Intellectual Property) carries the negotiated wording rather than the standard wording.

Blue Mesa Components Corporation undertakes that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. By design, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Arizona is where Blue Mesa runs precision machining operations across 2 sites, and the Component Supply Agreement follows that footprint. Because Blue Mesa operates in precision machining, the practical burden of this clause falls on its Arizona operation, and Article 18 (Assignment) governs how it is measured.

Blue Mesa is not obliged, under Exhibit C, to accept that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. On the operative wording, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Because Blue Mesa is a Arizona precision machining business with 2 sites, the Component Supply Agreement devolves this to the site manager. The Blue Mesa file records the position as at the last amendment, and Article 16 (Term and Termination) is the reference a reviewer should cite when raising it.

3. Delivery, title and risk

As between Blue Mesa and the Provider, a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. As a matter of construction, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Blue Mesa runs 2 sites from Arizona in precision machining, so the Component Supply Agreement is administered locally and this clause is applied per site. Blue Mesa has taken the point up once since signature; the correspondence is filed against Article 7 (Service Levels) and did not result in an amendment.

Subject to Article 11 (Data and Telemetry), the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. Negotiated position: the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Site count matters here: Blue Mesa has 2 sites, and the Component Supply Agreement treats each as a separate delivery point. Administration of this obligation for Blue Mesa sits with the account team rather than with central contracts, and Article 4 (Orders and Quantities) is where it is evidenced.

Where Article 7 (Service Levels) applies, the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. In terms of consequence, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Because Blue Mesa is a Arizona precision machining business with 2 sites, the Component Supply Agreement

devolves this to the site manager. Blue Mesa has taken the point up once since signature; the correspondence is filed against Article 19 (Confidentiality) and did not result in an amendment.

Where Article 8 (Acceptance) applies, the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. Strictly, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. In precision machining the burden of this sits with operations, and Blue Mesa discharges it across 2 sites under the Component Supply Agreement. Nothing in the Blue Mesa negotiation history qualifies Article 3 (Scope of Supply), and a reviewer should not read the pre-signature drafts as doing so.

Blue Mesa supply agreement - Schedule 3 - Deployment Milestones and Payment Triggers

Blue Mesa milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
BLU-M001	pilot acceptance	2025-08	8	Customer IT dependency	$179,099	invoiceable on certification
BLU-M002	warranty commencement	2025-10	32	no delay	$19,474	no payment attached
BLU-M003	network readiness certified	2025-01	10	facility readiness	$202,562	no payment attached
BLU-M004	full acceptance	2024-12	16	labour agreement	$36,770	invoiceable on certification
BLU-M005	pilot acceptance	2026-01	1	labour agreement	$236,042	no payment attached
BLU-M006	pilot acceptance	2026-04	15	seasonal freeze	$127,815	invoiceable on acceptance
BLU-M007	network readiness certified	2024-11	13	no delay	$228,757	invoiceable on acceptance
BLU-M008	units delivered	2025-08	17	Customer IT dependency	$221,939	invoiceable on acceptance
BLU-M009	site survey complete	2026-08	15	Customer IT dependency	$137,630	invoiceable on certification
BLU-M010	units delivered	2026-04	19	Customer IT dependency	$245,128	no payment attached
BLU-M011	steady-state handover	2024-04	3	no delay	$252,444	invoiceable on certification
BLU-M012	warranty commencement	2024-02	11	labour agreement	$178,938	no payment attached
BLU-M013	full acceptance	2025-03	18	labour agreement	$32,062	no payment attached
BLU-M014	steady-state handover	2026-01	19	facility readiness	$187,440	invoiceable on acceptance
BLU-M015	site survey complete	2026-05	27	network provisioning	$193,727	invoiceable on certification
BLU-M016	network readiness certified	2026-01	2	network provisioning	$268,499	invoiceable on acceptance
BLU-M017	units delivered	2026-10	28	Customer IT dependency	$88,653	invoiceable on certification
BLU-M018	integration test passed	2025-07	32	no delay	$21,942	invoiceable on certification
BLU-M019	units delivered	2026-08	24	seasonal freeze	$69,963	no payment attached
BLU-M020	steady-state handover	2024-09	22	labour agreement	$155,000	invoiceable on acceptance
BLU-M021	full acceptance	2025-09	14	Customer IT dependency	$60,336	invoiceable on certification
BLU-M022	full acceptance	2024-04	22	Customer IT dependency	$178,544	invoiceable on certification
BLU-M023	units delivered	2025-12	33	facility readiness	$213,501	no payment attached
BLU-M024	pilot acceptance	2026-01	9	facility readiness	$244,882	no payment attached
BLU-M025	units delivered	2026-06	8	labour agreement	$266,099	invoiceable on certification
BLU-M026	units delivered	2025-03	20	no delay	$245,789	invoiceable on certification
BLU-M027	steady-state handover	2024-07	19	seasonal freeze	$118,120	no payment attached

Blue Mesa milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
BLU-M028	units delivered	2025-04	7	labour agreement	$70,891	invoiceable on acceptance
BLU-M029	network readiness certified	2024-04	3	labour agreement	$92,335	invoiceable on certification
BLU-M030	steady-state handover	2025-09	16	network provisioning	$266,642	invoiceable on certification
BLU-M031	units delivered	2024-12	19	Customer IT dependency	$248,173	invoiceable on acceptance
BLU-M032	network readiness certified	2025-06	15	no delay	$214,396	no payment attached
BLU-M033	units delivered	2026-07	23	Customer IT dependency	$259,193	invoiceable on certification
BLU-M034	integration test passed	2024-05	3	facility readiness	$124,103	invoiceable on acceptance
BLU-M035	site survey complete	2026-03	28	no delay	$59,195	invoiceable on acceptance
BLU-M036	full acceptance	2025-02	5	Customer IT dependency	$243,114	invoiceable on certification
BLU-M037	full acceptance	2024-04	7	seasonal freeze	$218,336	invoiceable on certification
BLU-M038	pilot acceptance	2024-03	25	no delay	$30,624	invoiceable on acceptance
BLU-M039	integration test passed	2025-03	8	facility readiness	$171,361	invoiceable on acceptance
BLU-M040	site survey complete	2025-01	5	facility readiness	$115,132	invoiceable on certification
BLU-M041	units delivered	2025-06	23	facility readiness	$190,082	invoiceable on certification
BLU-M042	units delivered	2024-01	11	labour agreement	$267,555	invoiceable on acceptance
BLU-M043	full acceptance	2026-12	24	network provisioning	$45,314	no payment attached
BLU-M044	warranty commencement	2026-03	28	Customer IT dependency	$67,612	invoiceable on certification
BLU-M045	full acceptance	2026-02	30	facility readiness	$69,620	invoiceable on acceptance
BLU-M046	site survey complete	2026-10	25	seasonal freeze	$156,522	invoiceable on certification
BLU-M047	steady-state handover	2024-09	24	seasonal freeze	$169,439	invoiceable on acceptance
BLU-M048	full acceptance	2025-03	13	labour agreement	$83,220	no payment attached
BLU-M049	network readiness certified	2026-12	29	Customer IT dependency	$218,549	invoiceable on certification
BLU-M050	units delivered	2024-10	18	seasonal freeze	$264,333	invoiceable on acceptance
BLU-M051	site survey complete	2026-07	6	network provisioning	$135,199	invoiceable on certification
BLU-M052	units delivered	2024-05	32	no delay	$141,033	invoiceable on acceptance
BLU-M053	network readiness certified	2024-12	19	facility readiness	$208,077	no payment attached
BLU-M054	integration test passed	2024-07	3	Customer IT dependency	$152,326	invoiceable on certification
BLU-M055	network readiness certified	2024-11	17	labour agreement	$238,529	invoiceable on acceptance
BLU-M056	units delivered	2026-08	on plan	seasonal freeze	$257,580	invoiceable on certification
BLU-M057	units delivered	2024-10	16	network provisioning	$92,984	invoiceable on acceptance
BLU-M058	warranty commencement	2025-12	8	network provisioning	$26,256	invoiceable on certification
BLU-M059	units delivered	2025-09	4	Customer IT dependency	$151,794	invoiceable on certification
BLU-M060	network readiness certified	2025-11	on plan	no delay	$41,883	invoiceable on acceptance
BLU-M061	network readiness certified	2026-05	10	labour agreement	$27,303	invoiceable on acceptance

Blue Mesa milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
BLU-M062	pilot acceptance	2026-03	17	no delay	$99,841	no payment attached
BLU-M063	network readiness certified	2024-02	31	seasonal freeze	$235,864	no payment attached
BLU-M064	steady-state handover	2024-08	33	facility readiness	$31,075	invoiceable on acceptance
BLU-M065	site survey complete	2025-02	14	no delay	$78,833	no payment attached
BLU-M066	network readiness certified	2025-10	17	facility readiness	$67,819	invoiceable on certification
BLU-M067	integration test passed	2026-10	18	seasonal freeze	$57,878	invoiceable on certification
BLU-M068	network readiness certified	2025-07	29	network provisioning	$228,857	no payment attached
BLU-M069	integration test passed	2026-07	31	Customer IT dependency	$13,209	invoiceable on acceptance
BLU-M070	steady-state handover	2026-03	on plan	seasonal freeze	$92,168	no payment attached
BLU-M071	units delivered	2025-07	24	facility readiness	$107,497	invoiceable on acceptance
BLU-M072	integration test passed	2024-02	32	seasonal freeze	$229,461	invoiceable on certification
BLU-M073	steady-state handover	2026-11	9	no delay	$49,878	invoiceable on acceptance
BLU-M074	units delivered	2025-02	27	Customer IT dependency	$62,815	invoiceable on certification
BLU-M075	network readiness certified	2025-07	12	seasonal freeze	$33,259	invoiceable on certification
BLU-M076	steady-state handover	2025-11	3	network provisioning	$180,380	no payment attached
BLU-M077	pilot acceptance	2025-01	17	network provisioning	$267,658	invoiceable on acceptance
BLU-M078	full acceptance	2025-03	10	facility readiness	$168,130	invoiceable on certification
BLU-M079	steady-state handover	2025-02	4	labour agreement	$151,260	invoiceable on acceptance
BLU-M080	units delivered	2025-10	14	seasonal freeze	$214,475	invoiceable on acceptance
BLU-M081	network readiness certified	2026-10	30	labour agreement	$112,078	invoiceable on certification
BLU-M082	integration test passed	2026-12	on plan	seasonal freeze	$253,089	no payment attached
BLU-M083	integration test passed	2024-06	10	seasonal freeze	$190,810	invoiceable on certification
BLU-M084	site survey complete	2025-05	28	Customer IT dependency	$122,114	invoiceable on acceptance
BLU-M085	steady-state handover	2026-12	3	no delay	$207,629	invoiceable on acceptance
BLU-M086	network readiness certified	2024-12	14	network provisioning	$124,207	invoiceable on certification

4. Fees, invoicing and escalation

For the purposes of the Component Supply Agreement, the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. Textually, performance is measured against the exhibit and not against any statement made in the parties' correspondence. This bites at Blue Mesa's 2 sites, since a precision machining operator administers the Component Supply Agreement where the units work. Where Blue Mesa has raised a query the Provider has answered by reference to Article 13 (Licences), and the exchange is on the contract file.

On a proper construction of Schedule 3, the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. On timing, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Site count matters here: Blue Mesa has 2 sites, and the Component Supply Agreement treats each as a

separate delivery point. Notices under Article 17 (Transition Assistance) go to the contracting entity named in the recital and not to any Blue Mesa affiliate that may operate a site.

The Provider has undertaken to Blue Mesa that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. On the operative wording, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Blue Mesa runs 2 sites from Arizona in precision machining, so the Component Supply Agreement is administered locally and this clause is applied per site. The Blue Mesa relationship is managed against Article 15 (Limitation of Liability) at each quarterly review, and any variance is minuted there rather than in the Order.

Blue Mesa and the Provider agree that acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. Materially, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. In precision machining the burden of this sits with operations, and Blue Mesa discharges it across 2 sites under the Component Supply Agreement. The obligation as it applies to Blue Mesa was tightened at signature, and Article 2 (Definitions) carries the negotiated wording rather than the standard wording.

5. Service levels and credits

Blue Mesa may require that title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. On this point, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Site count matters here: Blue Mesa has 2 sites, and the Component Supply Agreement treats each as a separate delivery point. For a supplier of Blue Mesa's size the clause is unremarkable, but Article 2 (Definitions) is drafted more tightly here than in the Provider's standard form.

Blue Mesa retains the right, notwithstanding Article 5 (Delivery and Title), to require that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. As to enforcement, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Operating 2 sites, Blue Mesa applies the Component Supply Agreement at the point of delivery, as precision machining practice requires. Notices under Article 16 (Term and Termination) go to the contracting entity named in the recital and not to any Blue Mesa affiliate that may operate a site.

Blue Mesa acknowledges that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. Negotiated position: the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Running 2 sites in precision machining, Blue Mesa takes this obligation at site level rather than centrally under the Component Supply Agreement. Administration of this obligation for Blue Mesa sits with the account team rather than with central contracts, and Article 17 (Transition Assistance) is where it is evidenced.

Blue Mesa Components Corporation has notified the Provider that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. As a matter of construction, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Because Blue Mesa is a Arizona precision machining business with 2 sites, the Component Supply Agreement devolves this to the site manager. The Blue Mesa file records the position as at the last amendment, and Article 5 (Delivery and Title) is the reference a reviewer should cite when raising it.

6. Acceptance and change control

For the purposes of the Component Supply Agreement, the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. Operationally, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. The Component Supply Agreement reaches each of Blue Mesa's 2 sites separately, which is how a precision machining operator in Arizona administers it. Administration of this obligation for Blue Mesa sits with the account team rather than with central contracts, and Article 13 (Licences) is where it is evidenced.

Blue Mesa retains the right, notwithstanding Article 13 (Licences), to require that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. As between them, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Site count matters here: Blue Mesa has 2 sites, and the Component Supply Agreement treats each as a separate delivery point. Because Blue Mesa operates in precision machining, the practical burden of this clause falls on its Arizona operation, and Article 11 (Data and Telemetry) governs how it is measured.

Nothing in Exhibit D entitles Blue Mesa to assume that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. As between them, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Running 2 sites in precision machining, Blue Mesa takes this obligation at site level rather than centrally under the Component Supply Agreement. Administration of this obligation for Blue Mesa sits with the account team rather than with central contracts, and Article 5 (Delivery and Title) is where it is evidenced.

Blue Mesa is not obliged, under Schedule 3, to accept that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. By design, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. For Blue Mesa, a precision machining operator running 2 sites out of Arizona, the point matters because the Component Supply Agreement is administered site by site. For a supplier of Blue Mesa's size the clause is unremarkable, but Article 9 (Customer Obligations) is drafted more tightly here than in the Provider's standard form.

Blue Mesa supply agreement - Exhibit C - Service Levels and Credit Ladder

Blue Mesa service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
BLU-L001	availability	91.6%	5% of monthly fee	30% of monthly fee	excluding force majeure	credit then termination right
BLU-L002	response time	95.2%	11% of monthly fee	13% of monthly fee	excluding force majeure	credit then termination right
BLU-L003	availability	98.6%	8% of monthly fee	11% of monthly fee	excluding Customer-caused outage	credit only
BLU-L004	response time	95.3%	11% of monthly fee	17% of monthly fee	excluding force majeure	credit then termination right
BLU-L005	resolution time	98.1%	3% of monthly fee	25% of monthly fee	excluding force majeure	credit then termination right
BLU-L006	availability	95.3%	9% of monthly fee	22% of monthly fee	no exclusion	credit then termination right
BLU-L007	resolution time	92.9%	5% of monthly fee	25% of monthly fee	excluding force majeure	credit then termination right
BLU-L008	throughput	95.0%	11% of monthly fee	28% of monthly fee	excluding scheduled maintenance	credit then termination right
BLU-L009	resolution time	90.8%	6% of monthly fee	12% of monthly fee	no exclusion	credit then termination right
BLU-L010	availability	94.9%	9% of monthly fee	6% of monthly fee	excluding force majeure	credit only
BLU-L011	availability	90.4%	4% of monthly fee	7% of monthly fee	excluding scheduled maintenance	credit only
BLU-L012	throughput	91.5%	9% of monthly fee	19% of monthly fee	excluding force majeure	credit only
BLU-L013	throughput	95.4%	1% of monthly fee	29% of monthly fee	excluding force majeure	credit only
BLU-L014	response time	93.2%	2% of monthly fee	12% of monthly fee	excluding scheduled maintenance	credit then termination right
BLU-L015	resolution time	98.6%	10% of monthly fee	18% of monthly fee	excluding Customer-caused outage	credit then termination right
BLU-L016	response time	98.8%	8% of monthly fee	20% of monthly fee	no exclusion	credit then termination right
BLU-L017	response time	97.0%	7% of monthly fee	7% of monthly fee	no exclusion	credit then termination right
BLU-L018	throughput	96.8%	10% of monthly fee	16% of monthly fee	excluding force majeure	credit then termination right

Blue Mesa service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
BLU-L019	response time	97.7%	8% of monthly fee	8% of monthly fee	excluding scheduled maintenance	credit then termination right
BLU-L020	availability	97.6%	6% of monthly fee	16% of monthly fee	excluding Customer-caused outage	credit then termination right
BLU-L021	response time	92.3%	3% of monthly fee	11% of monthly fee	excluding Customer-caused outage	credit only
BLU-L022	resolution time	93.6%	8% of monthly fee	11% of monthly fee	excluding force majeure	credit only
BLU-L023	response time	91.1%	5% of monthly fee	16% of monthly fee	no exclusion	credit then termination right
BLU-L024	availability	91.1%	5% of monthly fee	6% of monthly fee	no exclusion	credit then termination right
BLU-L025	response time	96.6%	10% of monthly fee	12% of monthly fee	excluding scheduled maintenance	credit then termination right
BLU-L026	response time	93.1%	4% of monthly fee	26% of monthly fee	no exclusion	credit then termination right
BLU-L027	response time	94.8%	9% of monthly fee	10% of monthly fee	excluding Customer-caused outage	credit only
BLU-L028	resolution time	94.3%	12% of monthly fee	26% of monthly fee	excluding Customer-caused outage	credit only
BLU-L029	resolution time	94.1%	6% of monthly fee	21% of monthly fee	excluding scheduled maintenance	credit then termination right
BLU-L030	resolution time	91.9%	4% of monthly fee	27% of monthly fee	excluding Customer-caused outage	credit only
BLU-L031	throughput	94.7%	1% of monthly fee	15% of monthly fee	excluding scheduled maintenance	credit only
BLU-L032	resolution time	90.9%	2% of monthly fee	6% of monthly fee	excluding force majeure	credit then termination right
BLU-L033	resolution time	91.4%	10% of monthly fee	16% of monthly fee	excluding force majeure	credit then termination right
BLU-L034	resolution time	91.2%	5% of monthly fee	12% of monthly fee	excluding scheduled maintenance	credit then termination right
BLU-L035	throughput	90.9%	7% of monthly fee	11% of monthly fee	excluding force majeure	credit only
BLU-L036	response time	94.9%	12% of monthly fee	8% of monthly fee	no exclusion	credit then termination right
BLU-L037	response time	90.2%	1% of monthly fee	14% of monthly fee	excluding scheduled maintenance	credit only
BLU-L038	response time	95.6%	9% of monthly fee	12% of monthly fee	excluding scheduled maintenance	credit then termination right
BLU-L039	availability	94.7%	7% of monthly fee	26% of monthly fee	no exclusion	credit then termination right
BLU-L040	availability	91.5%	1% of monthly fee	22% of monthly fee	excluding Customer-caused outage	credit then termination right
BLU-L041	response time	94.0%	2% of monthly fee	29% of monthly fee	excluding Customer-caused outage	credit then termination right
BLU-L042	response time	93.9%	12% of monthly fee	6% of monthly fee	no exclusion	credit then termination right
BLU-L043	response time	92.6%	2% of monthly fee	28% of monthly fee	excluding Customer-caused outage	credit then termination right
BLU-L044	throughput	91.6%	12% of monthly fee	21% of monthly fee	excluding Customer-caused outage	credit then termination right
BLU-L045	throughput	93.4%	4% of monthly	26% of monthly	excluding force	credit then

Blue Mesa service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
			fee	fee	majeure	termination right
BLU-L046	availability	98.2%	11% of monthly fee	17% of monthly fee	excluding scheduled maintenance	credit only
BLU-L047	availability	97.3%	10% of monthly fee	28% of monthly fee	no exclusion	credit only
BLU-L048	resolution time	97.2%	8% of monthly fee	7% of monthly fee	excluding Customer-caused outage	credit then termination right
BLU-L049	resolution time	93.2%	12% of monthly fee	23% of monthly fee	no exclusion	credit then termination right
BLU-L050	throughput	92.3%	8% of monthly fee	25% of monthly fee	excluding force majeure	credit only
BLU-L051	availability	91.3%	8% of monthly fee	23% of monthly fee	excluding force majeure	credit then termination right
BLU-L052	availability	94.8%	4% of monthly fee	20% of monthly fee	excluding Customer-caused outage	credit only
BLU-L053	availability	90.7%	9% of monthly fee	6% of monthly fee	excluding Customer-caused outage	credit only
BLU-L054	throughput	98.8%	7% of monthly fee	22% of monthly fee	excluding scheduled maintenance	credit then termination right
BLU-L055	availability	97.6%	11% of monthly fee	12% of monthly fee	no exclusion	credit only
BLU-L056	availability	93.1%	12% of monthly fee	7% of monthly fee	excluding force majeure	credit only
BLU-L057	availability	94.7%	7% of monthly fee	9% of monthly fee	excluding force majeure	credit then termination right
BLU-L058	resolution time	96.1%	5% of monthly fee	22% of monthly fee	excluding Customer-caused outage	credit then termination right
BLU-L059	availability	98.7%	7% of monthly fee	16% of monthly fee	no exclusion	credit only
BLU-L060	throughput	92.1%	12% of monthly fee	5% of monthly fee	excluding Customer-caused outage	credit then termination right
BLU-L061	availability	95.2%	12% of monthly fee	30% of monthly fee	excluding Customer-caused outage	credit then termination right
BLU-L062	availability	91.3%	5% of monthly fee	29% of monthly fee	no exclusion	credit then termination right
BLU-L063	availability	98.8%	9% of monthly fee	8% of monthly fee	excluding force majeure	credit then termination right
BLU-L064	throughput	93.4%	4% of monthly fee	28% of monthly fee	no exclusion	credit only
BLU-L065	throughput	92.6%	11% of monthly fee	29% of monthly fee	excluding Customer-caused outage	credit then termination right
BLU-L066	response time	90.0%	6% of monthly fee	13% of monthly fee	no exclusion	credit then termination right
BLU-L067	throughput	94.2%	9% of monthly fee	22% of monthly fee	no exclusion	credit then termination right
BLU-L068	throughput	97.6%	12% of monthly fee	11% of monthly fee	excluding Customer-caused outage	credit only
BLU-L069	resolution time	90.0%	2% of monthly fee	25% of monthly fee	no exclusion	credit then termination right
BLU-L070	throughput	98.9%	6% of monthly fee	5% of monthly fee	excluding Customer-caused outage	credit only
BLU-L071	throughput	93.9%	11% of monthly fee	25% of monthly fee	excluding force majeure	credit only
BLU-L072	resolution time	95.2%	6% of monthly fee	29% of monthly fee	excluding Customer-caused outage	credit then termination right
BLU-L073	response time	93.1%	10% of monthly fee	5% of monthly fee	excluding scheduled	credit then termination right

Blue Mesa service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
					maintenance	
BLU-L074	response time	90.4%	9% of monthly fee	14% of monthly fee	excluding force majeure	credit then termination right
BLU-L075	availability	96.6%	8% of monthly fee	29% of monthly fee	excluding force majeure	credit only
BLU-L076	availability	93.3%	9% of monthly fee	30% of monthly fee	excluding Customer-caused outage	credit only
BLU-L077	response time	92.1%	6% of monthly fee	30% of monthly fee	excluding Customer-caused outage	credit only
BLU-L078	throughput	97.2%	6% of monthly fee	25% of monthly fee	excluding force majeure	credit only
BLU-L079	throughput	95.8%	9% of monthly fee	18% of monthly fee	no exclusion	credit only
BLU-L080	response time	96.4%	8% of monthly fee	14% of monthly fee	excluding Customer-caused outage	credit then termination right

7. Data, intellectual property and licences

Blue Mesa may require that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. On this point, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Blue Mesa runs 2 sites from Arizona in precision machining, so the Component Supply Agreement is administered locally and this clause is applied per site. The Blue Mesa relationship is managed against Article 5 (Delivery and Title) at each quarterly review, and any variance is minuted there rather than in the Order.

Blue Mesa Components Corporation undertakes that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. On the mechanics, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. For Blue Mesa, a precision machining operator running 2 sites out of Arizona, the point matters because the Component Supply Agreement is administered site by site. Notices under Article 21 (Governing Law and Disputes) go to the contracting entity named in the recital and not to any Blue Mesa affiliate that may operate a site.

For the purposes of the Component Supply Agreement, telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. On the mechanics, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Operating 2 sites, Blue Mesa applies the Component Supply Agreement at the point of delivery, as precision machining practice requires. Because Blue Mesa operates in precision machining, the practical burden of this clause falls on its Arizona operation, and Article 14 (Indemnities) governs how it is measured.

Blue Mesa Components Corporation undertakes that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. Deliberately so: the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Operating 2 sites, Blue Mesa applies the Component Supply Agreement at the point of delivery, as precision machining practice requires. Nothing in the Blue Mesa negotiation history qualifies Article 16 (Term and Termination), and a reviewer should not read the pre-signature drafts as doing so.

8. Indemnities and limitation of liability

Except as Article 6 (Fees and Payment) permits, a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. As drafted, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Operating 2 sites, Blue Mesa applies the Component Supply Agreement at the point of delivery, as precision machining practice requires. The Blue Mesa file records the position as at the last amendment, and Article 18 (Assignment) is the reference a reviewer should cite when raising it.

The Provider warrants to Blue Mesa that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. On the negotiated text, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Blue Mesa treats the obligation as a site-level matter across its 2 sites in Arizona, consistent with the Component Supply Agreement. For a supplier of Blue Mesa's size the clause is unremarkable, but Article 9 (Customer Obligations) is drafted more tightly here than in the Provider's standard form.

Save as Exhibit C otherwise provides, the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. On the negotiated text, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. 2 sites in Arizona means Blue Mesa applies the Component Supply Agreement through its regional operations team rather than through head office. Notices under Article 6 (Fees and Payment) go to the contracting entity named in the recital and not to any Blue Mesa affiliate that may operate a site.

Blue Mesa retains the right, notwithstanding Article 14 (Indemnities), to require that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. On the face of the clause, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. 2 sites in Arizona means Blue Mesa applies the Component Supply Agreement through its regional operations team rather than through head office. Nothing in the Blue Mesa negotiation history qualifies Article 4 (Orders and Quantities), and a reviewer should not read the pre-signature drafts as doing so.

Blue Mesa supply agreement - Exhibit D - Component Prices, Lead Times and Sourcing

Blue Mesa price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
BLU-P0001	part 8596-J	encoder	$1,333	17	550	qualification in progress	last-time-buy notice 12 months
BLU-P0002	part 6697-X	battery module	$2,215	16	400	single source	no EOL commitment
BLU-P0003	part 9277-X	encoder	$573	22	250	single source	last-time-buy notice 12 months
BLU-P0004	part 3266-W	gearbox	$878	22	350	dual sourced	last-time-buy notice 12 months
BLU-P0005	part 9377-G	gearbox	$1,628	20	200	dual sourced	no EOL commitment
BLU-P0006	part 1677-C	encoder	$1,305	22	350	dual sourced	last-time-buy notice 12 months
BLU-P0007	part 1370-U	encoder	$2,125	18	50	single source	last-time-buy notice 12 months
BLU-P0008	part 6487-D	controller board	$41	7	600	qualification in progress	EOL notice 6 months
BLU-P0009	part 6299-G	drive unit	$404	22	400	single source	no EOL commitment
BLU-P0010	part 9563-M	harness	$2,014	10	250	single source	no EOL commitment
BLU-P0011	part 7227-Y	optical sensor	$2,437	15	300	dual sourced	no EOL commitment
BLU-P0012	part 7234-W	optical sensor	$940	24	550	dual sourced	EOL notice 6 months
BLU-P0013	part 3712-P	harness	$310	15	400	single source	no EOL commitment
BLU-P0014	part 1195-P	encoder	$2,431	7	450	dual sourced	last-time-buy notice 12 months
BLU-P0015	part 7478-S	drive unit	$2,420	5	600	single source	no EOL commitment
BLU-P0016	part 9480-Y	drive unit	$575	21	350	qualification in progress	no EOL commitment
BLU-P0017	part 1053-D	controller board	$883	12	550	single source	no EOL commitment
BLU-P0018	part 3435-U	controller	$2,118	8	500	qualification in	EOL notice 6

Blue Mesa price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
		board				progress	months
BLU-P0019	part 5892-G	controller board	$205	10	550	single source	EOL notice 6 months
BLU-P0020	part 4587-H	encoder	$796	19	250	qualification in progress	EOL notice 6 months
BLU-P0021	part 7788-I	optical sensor	$109	4	150	qualification in progress	no EOL commitment
BLU-P0022	part 6558-X	drive unit	$1,092	5	100	dual sourced	EOL notice 6 months
BLU-P0023	part 9799-Y	optical sensor	$164	15	150	dual sourced	no EOL commitment
BLU-P0024	part 5569-G	drive unit	$800	18	600	dual sourced	no EOL commitment
BLU-P0025	part 6032-L	encoder	$1,247	20	150	dual sourced	EOL notice 6 months
BLU-P0026	part 2484-M	gearbox	$2,062	23	250	dual sourced	last-time-buy notice 12 months
BLU-P0027	part 1526-L	gearbox	$1,224	17	300	dual sourced	last-time-buy notice 12 months
BLU-P0028	part 8183-V	optical sensor	$812	7	300	dual sourced	no EOL commitment
BLU-P0029	part 2851-H	drive unit	$493	24	200	qualification in progress	no EOL commitment
BLU-P0030	part 3479-C	castor assembly	$331	25	100	qualification in progress	no EOL commitment
BLU-P0031	part 4815-X	controller board	$870	5	400	dual sourced	no EOL commitment
BLU-P0032	part 2592-Z	gearbox	$1,829	25	450	dual sourced	last-time-buy notice 12 months
BLU-P0033	part 3571-Z	harness	$2,421	11	150	qualification in progress	EOL notice 6 months
BLU-P0034	part 3804-N	harness	$368	6	450	qualification in progress	last-time-buy notice 12 months
BLU-P0035	part 1846-F	castor assembly	$872	15	500	qualification in progress	no EOL commitment
BLU-P0036	part 9982-P	encoder	$69	20	550	dual sourced	EOL notice 6 months
BLU-P0037	part 6202-I	battery module	$1,775	14	450	single source	last-time-buy notice 12 months
BLU-P0038	part 3754-E	controller board	$275	20	400	dual sourced	no EOL commitment
BLU-P0039	part 1027-E	battery module	$1,189	8	400	dual sourced	no EOL commitment
BLU-P0040	part 7403-O	harness	$202	18	450	single source	no EOL commitment
BLU-P0041	part 6378-O	controller board	$2,368	6	300	dual sourced	no EOL commitment
BLU-P0042	part 1120-V	drive unit	$2,349	19	350	single source	last-time-buy notice 12 months
BLU-P0043	part 7148-A	battery module	$1,525	4	50	qualification in progress	no EOL commitment
BLU-P0044	part 9805-G	optical sensor	$2,043	21	600	single source	EOL notice 6 months
BLU-P0045	part 7020-L	optical sensor	$535	9	500	single source	last-time-buy notice 12 months
BLU-P0046	part 6772-C	harness	$355	6	200	dual sourced	EOL notice 6 months

8. Indemnities and limitation of liability - part 2 of 2

Below, the 8. Indemnities and limitation of liability continues; nothing separates this part from the last except the page on which it happens to fall. The sequence is unbroken either side of it.

Nothing in this part varies how the 8. Indemnities and limitation of liability was compiled, and the headings given at the start remain the operative ones. Nothing is restated from the earlier part.

Blue Mesa supply agreement - Exhibit D - Component Prices, Lead Times and Sourcing (continued, part 2 of 2)

Blue Mesa price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
BLU-P0047	part 6830-B	controller board	$1,961	23	350	dual sourced	EOL notice 6 months
BLU-P0048	part 8910-J	optical sensor	$1,711	20	50	dual sourced	last-time-buy notice 12 months
BLU-P0049	part 9900-Z	battery module	$615	23	400	qualification in progress	last-time-buy notice 12 months
BLU-P0050	part 9464-V	controller board	$297	14	50	single source	last-time-buy notice 12 months
BLU-P0051	part 2506-T	castor assembly	$1,249	12	150	single source	last-time-buy notice 12 months
BLU-P0052	part 4339-E	controller board	$2,092	18	150	dual sourced	last-time-buy notice 12 months
BLU-P0053	part 3013-X	controller board	$1,292	4	50	qualification in progress	no EOL commitment
BLU-P0054	part 1977-T	gearbox	$586	14	450	qualification in progress	last-time-buy notice 12 months
BLU-P0055	part 5632-S	gearbox	$679	18	100	single source	no EOL commitment
BLU-P0056	part 6998-U	optical sensor	$2,104	4	250	qualification in progress	no EOL commitment
BLU-P0057	part 3470-I	harness	$746	10	400	dual sourced	no EOL commitment
BLU-P0058	part 7914-J	controller board	$1,708	21	400	dual sourced	no EOL commitment
BLU-P0059	part 1208-A	encoder	$1,892	25	450	qualification in progress	EOL notice 6 months
BLU-P0060	part 8270-X	optical sensor	$446	4	50	qualification in progress	last-time-buy notice 12 months
BLU-P0061	part 3611-K	harness	$38	20	550	dual sourced	no EOL commitment
BLU-P0062	part 9958-V	encoder	$65	12	300	dual sourced	no EOL commitment
BLU-P0063	part 6796-W	drive unit	$2,009	23	350	qualification in progress	last-time-buy notice 12 months
BLU-P0064	part 3936-F	optical sensor	$777	21	300	dual sourced	EOL notice 6 months
BLU-P0065	part 9104-A	drive unit	$436	4	200	dual sourced	EOL notice 6 months
BLU-P0066	part 6134-V	battery module	$2,415	9	200	qualification in progress	no EOL commitment
BLU-P0067	part 9079-S	optical sensor	$1,089	12	250	single source	EOL notice 6 months
BLU-P0068	part 2020-Z	encoder	$1,880	21	150	single source	no EOL commitment
BLU-P0069	part 8877-O	optical sensor	$1,748	23	350	qualification in progress	EOL notice 6 months
BLU-P0070	part 2389-M	castor assembly	$1,299	6	150	qualification in progress	last-time-buy notice 12 months
BLU-P0071	part 8486-Z	battery module	$2,309	15	300	dual sourced	no EOL commitment
BLU-P0072	part 1287-H	harness	$1,674	21	300	qualification in progress	EOL notice 6 months
BLU-P0073	part 6564-F	optical sensor	$815	21	150	dual sourced	no EOL commitment
BLU-P0074	part 9603-Z	gearbox	$604	12	150	qualification in	no EOL

Blue Mesa price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
						progress	commitment
BLU-P0075	part 9986-J	gearbox	$110	4	400	single source	no EOL commitment
BLU-P0076	part 1550-Z	controller board	$722	10	500	qualification in progress	EOL notice 6 months
BLU-P0077	part 6785-X	controller board	$334	16	200	dual sourced	EOL notice 6 months
BLU-P0078	part 4952-A	controller board	$359	4	450	qualification in progress	EOL notice 6 months
BLU-P0079	part 5714-Y	battery module	$1,612	11	100	dual sourced	EOL notice 6 months
BLU-P0080	part 1950-A	controller board	$544	13	600	qualification in progress	EOL notice 6 months
BLU-P0081	part 3421-A	controller board	$1,725	7	400	qualification in progress	last-time-buy notice 12 months
BLU-P0082	part 5809-S	drive unit	$923	25	350	qualification in progress	EOL notice 6 months
BLU-P0083	part 4613-M	battery module	$1,607	25	450	dual sourced	last-time-buy notice 12 months
BLU-P0084	part 2597-N	gearbox	$854	7	450	qualification in progress	no EOL commitment
BLU-P0085	part 6241-S	drive unit	$2,225	11	400	qualification in progress	no EOL commitment
BLU-P0086	part 6272-T	gearbox	$745	10	550	single source	no EOL commitment
BLU-P0087	part 3141-X	drive unit	$1,321	23	100	qualification in progress	no EOL commitment
BLU-P0088	part 7618-B	controller board	$1,544	6	300	single source	no EOL commitment
BLU-P0089	part 6803-J	harness	$2,265	22	550	qualification in progress	EOL notice 6 months
BLU-P0090	part 6457-A	optical sensor	$2,372	19	50	dual sourced	last-time-buy notice 12 months
BLU-P0091	part 6890-R	drive unit	$818	14	400	dual sourced	no EOL commitment
BLU-P0092	part 7547-Y	battery module	$417	21	200	qualification in progress	no EOL commitment

9. Term, termination and transition

Blue Mesa Components Corporation is entitled to require that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. Deliberately so: a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. The Component Supply Agreement reaches each of Blue Mesa's 2 sites separately, which is how a precision machining operator in Arizona administers it. Because Blue Mesa operates in precision machining, the practical burden of this clause falls on its Arizona operation, and Article 14 (Indemnities) governs how it is measured.

Blue Mesa bears the risk that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. Deliberately so: the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. 2 sites in Arizona means Blue Mesa applies the Component Supply Agreement through its regional operations team rather than through head office. The Blue Mesa file records the position as at the last amendment, and Article 4 (Orders and Quantities) is the reference a reviewer should cite when raising it.

The Provider warrants to Blue Mesa that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. Per the amendment history, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Blue Mesa runs 2 sites from Arizona in precision machining, so the

Component Supply Agreement is administered locally and this clause is applied per site. The Blue Mesa file records the position as at the last amendment, and Article 20 (Notices) is the reference a reviewer should cite when raising it.

Blue Mesa Components Corporation is entitled to require that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. In substance, performance is measured against the exhibit and not against any statement made in the parties' correspondence. For Blue Mesa, a precision machining operator running 2 sites out of Arizona, the point matters because the Component Supply Agreement is administered site by site. Notices under Article 9 (Customer Obligations) go to the contracting entity named in the recital and not to any Blue Mesa affiliate that may operate a site.

10. Assignment, notices and general

Blue Mesa Components Corporation undertakes that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. As to enforcement, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Site count matters here: Blue Mesa has 2 sites, and the Component Supply Agreement treats each as a separate delivery point. The Blue Mesa file records the position as at the last amendment, and Article 12 (Intellectual Property) is the reference a reviewer should cite when raising it.

Blue Mesa retains the right, notwithstanding Article 13 (Licences), to require that either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. On timing, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Site count matters here: Blue Mesa has 2 sites, and the Component Supply Agreement treats each as a separate delivery point. Where Blue Mesa has raised a query the Provider has answered by reference to Article 9 (Customer Obligations), and the exchange is on the contract file.

Blue Mesa is not obliged, under Exhibit B, to accept that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. As to enforcement, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Because Blue Mesa is a Arizona precision machining business with 2 sites, the Component Supply Agreement devolves this to the site manager. The Blue Mesa relationship is managed against Article 11 (Data and Telemetry) at each quarterly review, and any variance is minuted there rather than in the Order.

Blue Mesa has agreed, and the Provider has accepted, that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. In point of remedy, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Blue Mesa treats the obligation as a site-level matter across its 2 sites in Arizona, consistent with the Component Supply Agreement. For a supplier of Blue Mesa's size the clause is unremarkable, but Article 17 (Transition Assistance) is drafted more tightly here than in the Provider's standard form.